along the center line: N. 39° 52' E., 1,320 feet; S. 50° 08' E., 1,980 feet; S. 39° 52' W., 1,280 feet, more or less, to the center line of the highway; northwesterly, along the center line to the point of beginning.

5. At 10:00 a. m. on the 35th day after the date of this order, the unappropriated, unreserved, unsurveyed public lands released by this order shall, subject to valid existing rights and to the provisions of existing withdrawals, be opened to settlement under the homestead laws only and to that form of appropriation only by qualified veterans of World War II for whose services recognition is granted by the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284) as amended, and by other qualified persons entitled to credit for service under the said act. Commencing at 10:00 a. m. on the 126th day after the date of this order, any of such lands not settled upon by veterans or other persons entitled to credit for service shall become subject to settlement and other forms of appropriation by the public generally in accordance with appropriate laws and regulations.

All applications under the public land laws filed under this paragraph either at or before 10:00 a. m. of the 126th day after the date of this order shall be treated as though simultaneously filed at that time.

At 10:00 a. m. on the 35th day after the date of this order the surveyed public lands released by this order shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location and selection as follows:

(a) *Ninety-one day period for preference-right filings.* For a period of 91 days, commencing at the hour and on the day specified above, the surveyed public lands affected by this order shall be subject only to (1) application under the homestead laws or the Alaska Homesite Act of May 26, 1934, 48 Stat. 809 (48 U. S. C. 461), or the Small Tract Act of June 1, 1938, 52 Stat. 609 (43 U. S. C. 682a), as amended, by qualified veterans of World War II and other qualified persons entitled to preference under the act of September 27, 1944, 58 Stat. 747 (43 U. S. C. 279–284), as amended, subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications under subdivision (1) of this paragraph shall be subject to applications and claims of the classes described in subdivision (2) of this paragraph. All applications filed under this paragraph either at or before 10:00 a. m. on the 35th day after the date of this order shall be treated as though filed simultaneously at that time. All applications filed under this paragraph after 10:00 a. m. on the said 35th day shall be considered in the order of filing.

(b) *Date for non-preference-right filings.* Commencing at 10:00 a. m. on the 126th day after the date of this order, any lands remaining unappropriated shall become subject to such application, petition, location, selection, or other appropriation by the public generally as may be authorized by the public-land laws. All such applications filed either at or before 10:00 a. m. on the 126th day after the date of this order, shall be treated as though filed simultaneously at the hour specified on such 126th day. All applications filed thereafter shall be considered in the order of filing.

A veteran shall accompany his application with a complete photostatic, or other copy (both sides), of his certificate of honorable discharge, or of an official document of his branch of the service which shows clearly his honorable discharge as defined in § 181.36 of Title 43 of the Code of Federal Regulations, or constitutes evidence of other facts upon which the claim for preference is based and which shows clearly the period of service. Other persons claiming credit for service of veterans must furnish like proof in support of their claims. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated statements in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in the Land Office, Bureau of Land Management, Fairbanks, Alaska, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 65 and 66 of Title 43 of the Code of Federal Regulations, and applications under the said Alaska Home Site Act of May 26, 1934, and the said Small Tract Act of June 1, 1938, shall be governed by the regulations contained in §§ 64.6 to 64.10, inclusive, and Part 257, respectively, of that title.

Inquiries concerning these lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Fairbanks, Alaska.

ORME LEWIS,
Assistant Secretary of the Interior.

JUNE 18, 1954.

[F. R. Doc. 54-4782; Filed, June 23, 1954; 8:49 a. m.]

[Public Land Order 976]

ARIZONA

WITHDRAWING PUBLIC LANDS FOR USE OF THE DEPARTMENT OF THE AIR FORCE FOR MILITARY PURPOSES; REVOKING IN PART EXECUTIVE ORDER NO. 2131 OF JANUARY 30, 1915

By virtue of the authority vested in the President by Section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141) and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Subject to valid existing rights, the following-described public lands in Arizona are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining and mineral-leasing laws, and reserved for the use of the Department of the Air Force for military purposes:

GILA AND SALT RIVER MERIDIAN

T. 15 S., R. 14 E.,
Sec. 1;
Sec. 12, N½.

The areas described aggregate 958.40 acres.

Executive Order No. 2131 of January 30, 1915, reserving certain public lands for the use of the National Guard of Arizona as a rifle range, is hereby revoked so far as it affects the above-described lands.

ORME LEWIS,
Assistant Secretary of the Interior.

JUNE 18, 1954.

[F. R. Doc. 54-4770; Filed, June 23, 1954; 8:45 a. m.]

TITLE 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[Rules Amdt. 11-5; FCC 54-759]

PART 11—INDUSTRIAL RADIO SERVICES

SPECIAL INDUSTRIAL RADIO SERVICES

In the matter of amendment of § 11.501 of the Commission's rules, rules governing the Special Industrial Radio Services.

At a session of the Federal Communications Commission held at its offices in Washington, D. C., on the 16th day of June 1954;

On May 13, 1953, the Commission amended in part its rules governing eligibility in the Special Industrial Radio Service by deleting the criterion "remote and sparsely settled region" and substituting in lieu thereof the requirement that each station "be located and/or operated at all times in areas other than Standard Metropolitan Areas of 500,000 or more population." While this amendment has in general proved to be a useful standard in application processing, it necessitates, because of its categorical language, the denial of cases in which it is apparent that the concept of Standard Metropolitan Area in and of itself is not always realistic for radio licensing purposes. This is due to the fact that Standard Metropolitan Areas in general follow county lines which means that in many of them there are comparatively large regions of very low population density.

The Commission, therefore, believes that the present rule is needlessly inflexible and that a case by case determination should be permitted where the applicant can demonstrate the existence of special circumstances such as peculiarity in population distribution, terrain and directional antenna characteristics.

The Commission wishes to make clear the fact that the action taken herein is only in the nature of interim relief to applicants and licensees in the Special Industrial Radio Service pending the conclusion of rule making proceedings in Docket No. 9703 and should not be